

HOUSE BILL 1542

By Atchley

AN ACT to amend Tennessee Code Annotated, Title 39,
relative to theft.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 14, Part 1, is amended by adding the following new section:

(a) A person commits telecommunication fraud when the person, with intent to deprive the owner of property, uses a telecommunication device to fraudulently obtain or exercise control over the property of another without the owner's effective consent.

(b) Telecommunication fraud is punishable as theft pursuant to § 39-14-105, but in no event shall telecommunication fraud be less than a Class E felony.

(c) As used in this section, "telecommunication device" means the same as defined in § 39-16-201.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.